(To be submitted on Company/Firm/Contractor letter head with seal and signature)

INDEMNITY BOND CUM UNDERTAKING

M/s Shapoorji Pallonji & Co. Pvt. Ltd.,
41/44, S. P. Centre, Minoo Desai Marg
Colaba, Mumbai - 400005
GSTIN No. 27AAACS6994C1Z5

Sub : Payment of GST Amount and filing of GST Return for availing such tax as Input Tax Credit (ITC) by you.

Sir/Madam,

With reference to payment of GST amount and filing of GST Return for availing Input Tax Credit (ITC) by you as per eligibility provisions for the identified Invoices raised by us, we, M/s. NIHVA Technologies Pvt Ltd, Pune (the firm/Company) having our Registered Office at PUNE, possessing GST Identification No. 27AAECN0437H1ZM and having registered vendor code 10041558 (vendor/supplier code no.) with SPCPL hereby declare and undertake as follows:

1.We have disclosed all the facts relating to our Firm / Company to M/s Shapoorji Pallonji & Co. Pvt. Ltd., 41/44, S. P. Centre, Minoo Desai Marg, Colaba, Mumbai – 400005, GSTIN No. 27AAACS6994C1Z5

2. We hereby declare that we have paid/agree to pay GST in respect of invoices pertaining to the Purchase Order, to the respective GST Authorities.

In this connection, we hereby agree and undertake to furnish to you proof of payment of GST, which includes above mentioned GST amount.

3. We hereby declare that we would file GSTR 3B in respect of the above mentioned Order in time, and hereby agree and undertake to furnish you proof of electronically filed GST Return to the authority.

4. We hereby agree and undertake to indemnify as under:-

i) The Firm / Company shall take all necessary safeguards to ensure availing of ITC on all invoices as per eligibility by M/s. Shapoorji Pallonji & Co. Pvt. Ltd., Mumbai, GST No. 27AAACS6994C1Z5 within the time limit provided in the GST provision.

NIHVA TECHNOLOGIES PVT. LTD. PUNE
Dated 6/02/2020

Office Add:- 187/ G-Block, 1st Floor, Thermax Chowk, MIDC, Above Renault Showroom, Chinchwad, Pune - 411019
Reg. Add:- 8/1 Coromant Heg. Soc. Sec. No. 27, Nigdi, Pradhikaran, Pune - 411044.
+91 2066 3040 33 +91 85 51091 333 sales@nihva.com www.nihva.com | CIN No U72900PN2012PTC143948

ii) In the event of rejection of ITC by the concerned Tax Authority, for non payment of GST amount by us or for any other reasons whatsoever attributable to us , we hereby undertake and agree to indemnify M/s Shapoorji Pallonji & Co. Pvt. Ltd., Mumbai, GST No. 27AAACS6994C1Z5, in full against all consequences, liabilities of any kind whatsoever arising from denial of ITC including but not limited to any interest and penalty imposed by the authorities.

We hereby agree and confirm that –
In the event of any breach of the above indemnification or undertakings, it shall be construed as breach of the terms and conditions for reimbursement of GST and SPCPL shall be at liberty to take such action against us including recovering of reimbursed GST amount, along with Interest & penalty from

a) any of our Bank Guarantee executed in your favour, if any,
b) Security Deposit paid for any of your work, if any or
c) Other unpaid invoices, if any of us raised either under this Order or with any other Order of SPCPL or it's related entities.

I / We declare that I am duly authorized to sign this undertaking and the same is given under the orders of proper authority as per the delegation of power of the organization.

Place : Pune

Date : 06.02.2020

Authorised Signatory
Name : Mallikarjun Patil
Designation : Asst Sales Manager
Seal.

NIHVA TECHNOLOGIES PVT. LTD. PUNE
6/02/2020

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